RODY LUKUSA MUTENDI
versus
SEAN TONDERAI MANAKIRA

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 4 June 2026

Summons for Provisional Sentence

M. Serima, for the Plaintiff
N.L. Vitorini, for the 1st Defendant

CHITAPI J: This is a matter for provisional sentence. It was unfortunately and mistakenly uploaded on the IECM system under all cases as completed and finished when it was not. The plaintiff Rody Lukusa Mutendi filed a provisional sentence summons against the defendant Sean Tonderai Marukira in which he claimed payment of US$ 276 360 (Two hundred and seventy six thousand three hundred and sixty) United States Dollars and interest thereon at the prescribed rate from the date of summons to the date of payment.

In terms of the summons, the cause of debt arose from the defendant's failure to honor a deed of settlement which he signed on 5 September, 2023 admitting to the plaintiff liability for delivery of three hundred and fifty four thousand (354 000)litres of diesel.

The brief history of the claim is that the defendant received the sum of US$ 276 360 from the plaintiff in consideration of delivering 392 000 litres of diesel. The defendant failed to deliver the diesel. The plaintiff reported the matter to the police. A meeting was convened at which the plaintiff and the defendant agreed to reduce the amount of diesel due to 354 000 litres.

In consequence of the agreement arrived at the meeting the defendant as a seller executed the deed of settlement already referred to (*supra*) in terms whereof the defendant undertook to supply the plaintiff with 354 000 litres of diesel within (7) seven days of the date of serving the agreement. The plaintiff was to collect the diesel from Beira at his own cost. Both the plaintiff and the defendant signed the deed of settlement.

The plaintiff claimed in the summons that the defendant failed, neglected or refused to supply the fuel or to refund the agreed sum of US $ 276 360. He averred that the defendant truly owed the diesel or its value and sued out the provisional sentence process herein. The summons was duly served on the defendant. The defendant appeared at the hearing with his legal practitioners. He did not file a notice of opposition in terms of rule 14 (7) of the Court Rules. He was not obliged to. The rule is permissive or directory.

He intended through his counsel to give oral evidence. The issue that arose is whether it was proper to allow the defendant to lead evidence in terms of rule 14(9) in circumstances where he did not file opposing papers. It became necessary at the parties request to also outline the procedure for determining a provisional sentence pliant. I therefore divert from dealing with the merits to outline the procedure.

The decision whether or not a defendant files a notice of opposition to a provisional sentence summons lies within the defendant's discretion. Rules 14 (7) reads as follows:

> "(7) Prior to the date stated in the summons for appearance to defendant to answer the plaintiff's claim, the defendant may file a notice of opposition in form No 24, together with one or more supporting affidavits in which event the provisions of these rules shall apply with necessary changes to the service of a notice of opposition in terms of this sub rule and to the filing and service of any answering affidavits or further affidavits by the parties."

The provisions of the quoted sub-rule give the defendant who intends to oppose the summons a discretion to file a notice of opposition in form No 24 together with one or more supporting affidavits. The defendant in such event is then bound to follow the rules of this court regarding the service of the notice of opposition and filing of the answering affidavit. For convenience of the parties and the reader, the relevant rule that governs the service of a notice of opposition filed in form No 24 is Rule 59 (8) which provides as follows:

> "(8) As soon as possible and in any event not later that seven days after filing a notice of opposition and opposing affidavit in terms of sub-rule (7) the respondent shall serve copies of them upon the applicant and, as soon as possible thereafter, but not later than forty eight hours shall file with the Registrar proof of such service in accordance with sub-rule 16."

I consider it appropriate to include sub rule (9) which provides that:

> "(9) A respondent who has failed to file a notice of opposition and opposing affidavit in terms of sub rule (8) shall be barred.

The procedure therefore is that there is no time limit provided for the defendant to file the notice of opposition, opposing affidavit and supporting documents save that they should have been filed prior to the date set down for the hearing of the matter. It is of course the

practice that the provisional sentence summons as provided for in r 14 (2) must on issue by the legislature provide a date on which the matter will be heard or the set down. I must stress that the opposition should be filed prior to the date of set down endorsed on the summons. The rule does not say that the opposition can be filed prior to the hearing. The last date for filing the opposition is the day before the set down date of hearing. If the defendant fails to file the opposition as provided for, the defendant is barred. The opposing papers cannot competently be filed on the date of hearing. The defendant must where the notice of opposition is aforesaid has been filed, prepare and file proof of service in the appropriate form within forty eight hours of service of the opposing papers.

Should the opposing papers have been timeously filed, the plaintiff may within a period of not less than ten days prior to the set down date of the hearing file an answering affidavit. The plaintiff in such event must serve copy of the affidavit upon the defendant and file proof of service within forty eight hours of such service. For purposes of direction, a situation may arise wherein the date of hearing is less than ten days from the date that the plaintiff has to file the answering affidavit. In such event the plaintiff must file the answering affidavit as soon as possible after service of the notice of opposition so that the court and the defendant are afforded a reasonable time to acquent with the answering affidavit before. In this way the parties may avoid a postponement which may arise because of the need by the defendant and or the court to read through the said affidavit. Further affidavits may be filed only with leave of the court.

The procedure for disposing of a provisional sentence summons case under the r 14 (7) procedure is therefore *sui generis*. One cannot call the procedure a court application procedure as envisaged in r 59 of the Court Rules. This is so because the process commences with the issuing of a provisional sentence summons as opposed to a founding affidavit. The defendant who chooses to defend the summons is then required to do so in an opposing affidavit. The plaintiff may answer to the opposing affidavit also on affidavit. There is no requirement for filing heads of argument. It seems to me with respect to be anomalous that the response to the provisional summons is required to be on affidavit when the summons itself is generalized and has attached to it the liquid document sued upon without a verifying affidavit. The procedure for the hearing is not provided for. In such a case the court may then direct how the proceedings will be conducted presumably after the identification of issues which arise from the summons and the opposing and answering affidavits.

An allied rule on procedure to rule 14 (7) is sub rule (8). The sub rule deals with the procedure where the defendants admits his or her liability. The rule covers situations which if established may result in the court granting a final judgment against the defendant. The final judgment if granted closes the mater and like any final judgment not excepted is subject to appeal. The situations in which according to r 34(8) a final judgment may be granted are:

(i) Where the defendants admits the liability.
(ii) Where the defendants has previously filed with the Registrar an admission of liability signed by the defendant concerned and witnessed by the defendant's legal practitioner.
(iii) Where the admission is not witnessed by the legal practitioners but is however verified by the defendant by affidavit.

There should be therefore no problem with disposing of a provisional sentence summons where the defendant admits liability.

The remedy of provisional sentence is intended to expeditiously dispose of matters in which the plaintiff holds a valid liquid document in the form of an acknowledgement of debt. To this end the court is allowed a lot of latitude to allow for the hearing of oral evidence in provisional sentence proceedings. Rule 14 (9) provides as follows:

> "(9) The court may hear oral evidence as to the authenticity of the defendant's signature or that of his or her agent, to the document upon which claim for provisional sentence is founded for as to the authority of the defendant's agent."

Oral evidence is therefore permitted in limited and narrow instances. Evidence may only be led in the following instances;

(i) Where the signature of the defendant or his or her agent on the document is placed in issue.
(ii) Where the authority of the agent to execute the document is placed into issue.

The issue which arises is the relationship between r 14 (7) and r 14 (a). Rule 14 (7) provides for a process akin to an opposed court application without however a founding affidavit as the originating process. The question then is whether r 14 (9) is applicable in a hearing where an opposing and answering affidavits have been filed or it is applied where the court summarily deals with provisional sentence summons where the defendant has not filed an opposing affidavit in terms of r 14 (9) . In my understanding of r 14 (9) there is nothing in the rule to suggest that oral evidence as to the matters provided for in that rule is not permitted in either of the two instances. Thus, the discretion to hear oral evidence is reposed on the court. Like every judicial discretion, it must be exercised judicially after taking account of the attendant facts and all circumstances of the matter which are proper to

consider in allowing for oral evidence. In short my understanding of the rule is that oral evidence as to the authenticity of the defendant's signature or that of his or her agent or of the agent's authority to execute the alleged liquid document may be led in provisional sentence proceedings whether the proceedings are summarily dealt with or where the defendant has filed opposing papers in terms of r 14 (7). In regard to the incidence of proof, the plaintiff has the onus to prove the authenticity of a disputed signature on the basis that he who avers must prove. Where the court refuses to grant provisional sentence r 14 (14) provides that the provisional sentence summons shall stand as an ordinary summons to which the defendant shall enter appearance within a reduced period of five (5) days of the court's judgment. The case thereafter proceeds as an ordinary defended action in terms of further process. The court may however give other directions. Such discretion to give other directions will be informed by a consideration of issues for determination which arise. It is not advised to attempt to give examples of instances when the directions may be given. At the bottom of this discretion is the recognition that the court has power to regulate its own processes in the interest of justice.

Having diverted to deal with procedural aspects of provisional sentence it must be emphasized that whatever discretions the court may exercise as discussed, the court must be wary not to turn provisional sentence proceedings into a protracted process akin to an ordinary trial thereby defeating its very purpose of affording the plaintiff who holds a liquid document speedy relief. As was stated by MATANDA MOYO J in *Eastring Investments (*Pvt) Ltd v *Defurb Investments (Pvt) Ltd & Anor* HH 830/16

> "Provisional sentence is a special procedure designed to give a plaintiff who is a holder of a liquid document and *prima facie* proof this claim, speedy judgment without the expense and delay that ordinary trial action entails."

At the hearing, the court must strive to determine the matter and not simply refer it to trial because some defence has been raised by the defendant. In the case of *Zimbabwe Leaf Tobacco Company (Pvt) Ltd* v *Cooke* HH 829/16 MATANDA MOYO J again had this to say in underscoring that the court must not just refer a provisional sentence matter to the opposed roll.

> "To automatically refer the matter to the opposed roll without the court making a finding that the defendant has a defence to be canvased as to undermine or take away the remedy. My understanding is that the court on the date of set down should hear the parties especially the defendant. If the defendant's defence is that the matter can be resolved either way, the court should thereat dispose of the matter. If the defence raised by the defendant requires further filing of papers by the parties, the court can either refer the matter to the opposed roll or to trial if the facts are not capable of resolution on papers. This can be done where the defendant

> produces sufficient proof on affidavit to show that the probability of success in the principal case favours the defendant. See *Froman* v *Robertson* 1971 (1) SA 115A at 120 B."

The above dicta highlights that provisional sentence summons case must be speedily disposed of. It is necessary to however qualify the dicta in relation to its reference to referral of the matter to the opposed roll. The rules as they currently stand do not provide for a referral of a provisional sentence summons matter to the opposed roll. The court rules in r14 (6) provide that provisional sentence summons cases be set down on a roll and day not reserved for the unopposed roll. This rule was inserted to ensure that the court in provisional sentence summons case has sufficient time to fully deal with and determine the case. It seems to me to be illogical given the construction of the rules to refer a provisional sentence matter to the opposed roll because if the defendant has field a notice of opposition and the plaintiff an answering affidavit, the matter is at the stage fully opposed. The court will have to read the opposing and answering affidavits or if not it should do so. The court is consequently in the same position as the judge presiding over opposed matters. There is provision to allow the leading of oral evidence of authenticity of the signatures or authority of agent to bind principals. The defendant usually raises a myriad of defences which relate to issues like the liquid documents having been signed under duress and so on. Such defences can be raised at trial. If the defendant admits the liquid document or it is establishes that he or she is the signatory to the liquid document, provisional sentence should be granted. The defendant who wishes to then defend can enter appearance to defend after paying off the judgment debt in terms of r 14 (10). The plaintiff must where the defendant wishes to defend., provide security de *restituendo* in terms of r 14 (12) and (13).

Reverting to the merits of this case, the defendant appeared in person. He did not file an opposing affidavit. I exercised my discretion to hear evidence of both parties. The plaintiff identified his signature on the liquid document. He gave evidence of how the parties ended up entering into the deed settlement. I allowed him to testify briefly on that aspect for finality and context. The critical evidence was that he identified the document and the signatures of both himself and the defendant.

The defendant gave evidence. He admitted that he executed the deed of settlement and signed it. He also testified that he had fuel in storage for collection by the plaintiff in Beira.
The parties then agreed to a postponement to enable them to complete their agreed settlement whose terms were that:

(a) The plaintiff would collect from the defendant 300 000 litres of diesel within thirty (30) working days from the date of this order.
(b) The plaintiff to supply nomination lists of trucks which would collect the fuel.
(c) In the event that the defendant has failed to deliver, he will be liable to pay the plaintiff US$ 276 360.
(d) The matter is postponed by consent to 7 May, 2025.

On the date of the postponement, the defendant had not provided the amount of the diesel as agreed to in the consent order by the parties. The defendant has become liable therefore to refund the plaintiff the sum of US$ 276 360. Thus the plaintiff is entitled to provisional sentence as prayed for. The matter is accordingly determined as follows:

IT IS ORDERED THAT;

1. Provisional sentence is granted as claimed in the summons.
2. The defendant shall pay the plaintiff the sum of US$ 276 360.00 in ZIG calculated at the interbank rate on the date of judgment together with interest at the prescribed rate from the date of summons being 30 November, 2023 to the date of full payment and costs of suit.

CHITAPI J:……

Manase & Manase Legal Practitioners, Plaintiff's Legal Practitioners
Tafireyi & Company, Defendant's Legal Practitioners